FIELD GUIDE 01 · BUSINESS & ENTREPRENEURSHIP

EB-1A

for Business Leaders

THE FOUNDER'S EVIDENCE BLUEPRINT

A premium guide for entrepreneurs, executives, and senior professionals building a self-petitioned extraordinary ability case

AiVass

Published by AiVass LLC

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The Founder's Evidence Blueprint

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CHAPTER

01

Why EB-1A Fits a Business Career

And why USCIS was not thinking about you when it wrote the rules.

The ten EB-1A criteria read like they were drafted for a tenured physicist. Scholarly articles. Artistic exhibitions. Judging the work of others. A founder scanning that list for the first time usually concludes the category was not built for business — and then never files.

That conclusion is wrong, and expensively so. **Business is one of the five statutory fields** named in INA § 203(b)(1)(A) — alongside the sciences, arts, education, and athletics. Nothing in the law ranks them. And the current USCIS Policy Manual now speaks directly to commercial careers: it treats **significant funding from government, venture capital, or angel investors** as a positive factor establishing an organization's distinguished reputation, and it names **highly valued startup equity** as evidence comparable to a high salary. The agency knows founders exist. Most petitions simply fail to speak its language.

What you get — and what it costs

- **Self-petition.** You file your own Form I-140. No employer, no sponsor, no dependence on the company that currently holds your visa.
- **No job offer.** The Policy Manual is explicit: an EB-1A petition "does not need to be supported by a job offer."
- **No PERM.** No labor-market test, no recruitment, no eighteen-month DOL detour.
- **First in line.** EB-1 is the first employment-based preference — current for most countries, with premium processing available.
- **The price.** A higher evidentiary bar than any other employment category, and a final-merits review that punishes vague, unquantified achievement. That is the whole trade.

The bottom line

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EB-1A does not ask you to be a scientist. It asks you to prove — in numbers, from independent sources — that you sit among the small percentage at the very top of a field you can define.

Who this guide is for

- Founders and co-founders of funded companies — pre-seed through late stage.
- C-suite and VP-level executives at companies (or divisions) with documentable reputation.
- Senior operators below the C-suite whose work drove outcomes the company would not have reached without them.
- Consultants, investors, and independent professionals whose methods or portfolios have measurable field-level impact.
- Business-side professionals in product, growth, finance, operations, and strategy.

Who it is not for — yet

If your achievements are excellent but internal — strong performance reviews, promotions, revenue you helped generate inside one company — you are not disqualified; you are **early**. Chapter 9 gives you a build plan. The most expensive mistake in this category is filing before the evidence exists.

Strategy note — the honest reframe

Business petitions do not fail because business is a weaker field. They fail because commercial achievement is normally measured in private: internal dashboards, confidential revenue, non-public deals. Your job across this guide is to convert private excellence into public, third-party-verifiable proof.

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YOU'VE SEEN THE PREVIEW

Unlock the full EB-1A for Business Leaders

This preview shows 5 of 44 pages. The complete guide gives you every criterion in depth, the evidence-mapping framework, the filing and fees breakdown, the expert annex, and the full self-assessment scorecard.

The full guide includes:

- Every one of the ten criteria, explained as USCIS actually applies them
- The evidence-mapping method: turn scattered achievements into proof
- A 30 / 90 / 180-day evidence sprint you can start today
- Filing, fees, and Visa Bulletin timing — with a dated snapshot
- The expert & B2B annex: intake, QC checklist, RFE risk register
- A scored self-assessment to know exactly where you stand

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